

Viman Dev Nath vs Ranjeet Kumar Biswas on 27 January, 2025

IN THE COURT OF SH. SNEHIL SHARMA,
JUDICIAL MAGISTRATE FIRST CLASS,
NI ACT, SOUTH WEST, DWARKA DELHI

JUDGMENT

VIMAN DEV NATH Vs. RANJEET KUMAR BISWAS CC NO: 23921/2019 P. S. Janak Puri U/s 138 NI Act a CNR No. of the case : DLSWo20334642019 b Date of institution of the case : 04.07.2019 c Cheque number and dated : 010268 dt. 16.05.2019 d Cheque amount : Rs. 10,00,000/-

e Name of the complainant	: Viman Dev Nath S/o Sh. Niranjana Dev Nath R/o RZ-94/12, Gali No.7, Madanpuri, West Sagarpur, New Delhi -110046.
f Name of the accused and his parentage	: Ranjeet Kumar Biswas @ Ranjib Prop. Of "Sur Sangam Kala Academy" r/o RZ, A-1/1, Pipal Wali Gali, Mahavir Enclave, Palam, Dabri Road, New Delhi - 110045.
g Offence complained of	: 138 NI Act
h Plea of accused	: Not guilty
i Orders reserved on	: 09.01.2025
j Final order	: Accused Ranjeet Kumar Biswas @ Ranjib is acquitted for offences punishable under sections 138 NI Act.
k Date of judgment	: 27.01.2025

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1. Vide this judgment the present complaint case for an offence punishable U/S.138 of the Negotiable Instruments Act, 1881 (hereinafter "the NI Act") is being decided.

2. It is case of the complainant that the accused is having friendly relations with the complainant since long. In the first week of July 2016 that Ms. Radha Dass alongwith accused approached the complainant and Ms. Radha Dass requested for a friendly loan of sum of Rs. 11,00,000/- during the time span of one year as they were doing work on big stage programme. The accused demanded Rs. 5,00,000/- for 01 and half year. That on demand of the accused, complainant arranged and gave a sum of Rs. 4,90,000/- to the accused persons as friendly loan without any interest for a period of one and half year.

3. That again Ms. Radha Dass alongwith accused approached the complainant in last week of November 2017 and requested for Rs. 1,10,000/-, keeping in view of the friendly relations with the accused the complainant had given a sum of Rs. 1,10,000/- to Ms. Radha Dass. Accused had also assured that they will compensate the complainant. Further, accused approached the complainant in last week of March, 2018 and again requested for a friendly loan of Rs. 5,00,000/- and assured again that entire payment shall be paid within six months. Keeping in view of friendly relations with both the accused, complainant had given a sum of Rs. 5,00,000/- to the accused. The accused and Ms. Radha Dass have given assurance that they will definitely pay all the loan amount totalling to Rs. 11,00,000/- in one shot by the end of October 2018.

3. On demand of the complainant, the accused accepted the entire liability of loan amount and given undertaking to the complainant to pay the entire loan amount and had issued one post dated cheque bearing no. 010268 , dt. 16.05.2019 drawn on Oriental Bank of Commerce, Mahavir SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:36:47 +0530 Enclave, Delhi for sum of Rs.10,00,000/- in favour of the the complainant. That accused had also undertaken to pay Rs. 2,00,000/- as compensation apart from the loan amount but accused had only issued post dated above said cheque to discharge his liability towards the complainant and assured that the above said cheque would be honoured on its presentation.

4. On the assurance of the accused, the complainant presented the aforesaid cheque before his banker for encashment on 20.05.2019 but the said cheque was dishonoured and returned unpaid with remarks "funds insufficient" vide return memo dated 21.05.2019.

5. The complainant immediately contacted the accused who gave the evasive replies. The complainant had sent a legal notice dated 06.06.2019 to the accused through his counsel regarding the dishonour of the aforesaid cheque through registered AD & speed post and the same was served upon the accused. The accused has neither replied nor make payment of the cheque amount and therefore, the present complaint is filed by the complainant against the accused for the offence under Section 138 of the NI Act.

6. On being satisfied of the prima facie ingredients of Section 138 of the NI Act, cognizance was taken and summons were directed to be issued against the accused vide order dated 03.08.2019.

7. Accordingly, on 31.03.2022 notice under Section 251 Cr.PC r/w Section 263(g) Cr.P.C was framed and served upon the accused to which he pleaded not guilty and claimed trial. While putting forth his plea of defence, accused denied of knowing the complainant and accused has admitted his

signatures but other details in the cheque were not filled by SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:36:53 +0530 him. He has admitted his address to be correct at which he used to reside and left in the year 2019 and denied having received the legal demand notice. Accused has further stated that he had never taken any loan from the complainant. Neither does he know the complainant. He does not know how his cheque reached the complainant. However, he suspects that one of his former employee Ms. Anuradha Das may have provided this cheque to the complainant since he used to entrust her with his signed cheques to be given to his staff members in his absence.

8. In Complainant's evidence, the complainant (CW-1) tendered his evidence affidavit in post summoning evidence and relied upon the following documents:

- | | | |
|------|-------------------|--|
| i) | Ex. CW1/A | : Evidence of complainant
by way of affidavit. |
| ii) | Ex. CW1/1 | : Original cheque
(admitted u/s 294
Cr.P.C.) |
| iii) | Ex. CW1/2 | : Return memo
(admitted u/s 294
Cr.P.C.) |
| iv) | Ex. CW1/3 | : Legal notice |
| v) | Ex. CW1/4(colly.) | : Postal receipt
(admitted u/s 294
Cr.P.C.) |
| vi) | Ex.CW1/5 | : Tracking report |
| vii) | Ex.CW1/6 | : Certificate u/s 65B Evidence
Act |

9. CW1/complainant was cross examined on behalf of the accused. During cross examination, CW1 has stated that he could not complete his graduation. He studied till 2nd year (BA). He was a builder and property dealer. His annual income was around Rs.7-8 lacs per annum. He file ITR SNEHIL SHARMA SHARMA Date:

2025.01.27 16:37:00 +0530 but he would have to check for which years he had ITR. In the year 2019 he must have shown an income of around Rs.11-13 lacs in his ITR. He had known the accused for past 10 years. He knew the complainant through one Radha Dass with whom he was acquainted for last 25 years. The accused used to visit Ms. Radha Dass and both of them used to do some business together. They used to run a music academy by the name of 'Sur Sangam Kala Academy'. He later realized that accused is owner of that academy and Ms. Radha Dass was his receptionist. The accused approached him for money at the residence of Radha Dass for the purpose of

business expansion in July, 2016. The accused had asked him for a loan of Rs.5 lacs. He had given him Rs.4,90,000/-. He had given this amount within 15-20 days of the accused first demanding it. No written document/ agreement was executed.

10. Complainant voluntarily deposed that he did not insist on any written document since he used to regularly advance money to Ms.Radha Dass and she used to return it, that is why on her assurance she did not take any written acknowledgment from the accused. He could not tell clearly how much amount Ms. Dass had taken from him as she used to have regular financial dealings with him and his wife. It is possible that she could have taken around 8-10 lacs rupees from him. The loan was advanced to the accused at the residence of Radha Dass. The loan amount was arranged after withdrawing some amount from bank and pooling remaining amount from the cash available at his residence. Around Rs. 1- 1.5 lacs was withdrawn from the bank in the year 2016. He could not clearly tell what was the denomination of currency notes in which loan was advanced.

11. Complainant was asked in how much time did the accused ask you to repay the amount to which he answered that initially he had given Rs.4,90,000/- in the year 2016, thereafter, in the year 2017 he had given SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:37:06 +0530 Rs. 1,10,000/-. Thereafter, the accused had repaid an amount of Rs. 1 lac some time in the 2017-18. Thereafter, he gave a sum of Rs.5 lacs in the year 2019. Thereafter, the accused had issued a cheque of Rs. 10 lacs on his demand. Accused had assured that he would repay the amount within one year. The amount of Rs. 1 lac paid by the accused in the year 2017-18 was given to complainant in cash. The cheque in question was given to him in the year 2019, It is submitted by complainant that he was confused earlier and the amount of Rs.5 lacs was paid by him to the accused in the year 2018 and the accused had to return the entire amount by the year 2019. The accused had to return this amount by fourth or fifth month of 2019.

12. CW1 was further cross examined and he stated that he had never visited the residence of accused. Complainant voluntarily deposed that he had met him only at the residence of Radha Dass. At present he does not remember the address of the accused but he knew that accused resides near a big school in Mahavir Enclave. Accused has a floor. It is admitted that he had advanced the loan to the accused upon the instance of Radha Dass @ Anuradha. The loan amount was handed over to Radha Dass in presence of accused. It is admitted that he had regular financial dealings with Radha Dass. It is admitted that accused had sought loan from him for a period of one year. Complainant stated that accused had not returned any amount between the period of initially advancing of a sum of Rs.4,90,000/- and thereafter, a sum of Rs.1,10,000/- to the accused. Complainant was further asked that when the accused did not repay a single penny to him after advancing the first instalment of loan, did he take any written acknowledgment/ agreement from the accused at the time of advancing the second instalment to which he stated 'no' but complainant voluntarily stated that Radha Dass had given her cheque at the time of advancing second instalment to the accused.

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13. He had never communicated with the accused telephonically regarding repayment of the loan amount. Complainant voluntarily stated that the accused used to come to his residence only. On one occasion he had come to see his house also as he was a dealer and engaged in constructions projects as well. He had shown the loan advanced to the accused in his ITR as well. He was carrying such ITRS which is Ex. CW1/D1 (colly) and EX.CW/D2 (colly). It is affirmed that on internal page no.4 of CW1/D2 i.e. his balance sheet for the period 01.04.2018 to 31.03.2019 he had mentioned that he had given a loan of Rs. 11 lacs to Radha Dass at point A. The cheque in question was handed over to him by Radha Dass in the presence of accused. The cheque was handed over to him in a duly filled condition. He was sure that the name of payee and amounts in words and figures were already filled up when the cheque was handed over to him. He was not very sure about the date. The material particulars like name of payee and amount were filled by the accused himself. CW1 has denied all the allegations put to him during cross examination. Thereafter, CE was closed.

14. The accused was then examined under Section 313 Cr.P.C., 1973 wherein all the incriminating evidence were put to the accused and accused has affirmed having issued cheque in question in favour of the complainant in which he affirmed the signatures were of him but denied other particulars being filled by him. He had denied having received the legal demand notice. Accused has further stated that the complainant has filed completely false and frivolous case and has deposed falsely against him. The complainant is altogether stranger to me. Complainant had never met him earlier in his life. He was acquainted with Ms. Radha Dass but he had never met the complainant even at the residence of Ms. Radha Dass. He has opted to lead DE.

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15. Accused has examined himself as DW1. DW1 has deposed that he was working as a Tabla Staff Artist at University of Delhi on contract and also running a music academy at Mahavir Enclave. He had five staff members in the year 2019. One Anuradha Das was working as a receptionist with him. He usually had to go for work outside Delhi, in his absence, his receptionist Anuradha Das used to look over the work of his music academy. He also left some signed cheques in his office for the payment of staff members. The payment by cheque used to be made by the Anuradha Das to his staff members. The payment to his staff members used to be maximum in the sum of Rs. 6,000/-. Two of the aforesaid cheques were misplaced. He was not aware how his cheque came in possession of the complainant. The complainant is not known to him.

16. DW1 was cross examined on behalf of the complainant. During cross examination, he deposed that first time he came to know about the dishonouring of the cheque and filing of the present case when he had received the information from a police person of P.S Dabri and he came to know that the complainant had misused the cheque in question. He had moved a complaint about missing of his cheque but he did not file the same on record. It is affirmed that the cheque in question was returned unpaid due to "funds insufficient" as per return memo Ex.CW1/2. He had not received the legal notice. The address as mentioned in the notice belongs to him however, he had left the said address in November 2019. Accused voluntarily stated that Ms. Radha Dass was working in his academy at the relevant time. Ms. Radha Dass worked till 2016-2017 in his academy. Accused

voluntarily stated that she did not come regularly and he could not tell the month up to which month or date she worked in his academy however, at the time of issuance of the cheque she was working with him. He still had good terms with Ms.Radha. She left the job of her own. His job with University of Delhi was contractual. He had not held any document to SNEHIL SHARMA SHARMA
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2025.01.27 16:37:28 +0530 prove that he used to visit outside of Delhi for his programme or he used to make payment through his staff through cheques. DW1 had denied all the suggestions put to him during cross examination. Thereafter, DE was closed and final arguments were heard.

17. It has been argued by Ld. Counsel for the complainant that case of the complainant is proved and cheque is also in the favour of the complainant, therefore, accused must be convicted and amount should be recovered. On the other hand, Ld. Counsel for accused has argued that accused has been falsely implicated in this case and that complainant has not been able to prove its case beyond reasonable doubt against the accused.

18. I have heard ld counsel for the complainant and Ld. Defence counsel for accused & considered the respective arguments as well as gone through case file very carefully.

19. The essential ingredients in order to attract Sec. 138 of NI Act, 1881 are as following:

- i) The cheque for an amount is issued by the drawer to the payee/complainant on a bank account being maintained by him.
- ii) The said cheque is issued for the discharge, in whole or in part of any debt or liability.
- iii) The cheque is returned by the bank unpaid on account of insufficient amount to honour the cheque or it exceeds the amount arranged to be paid from that account by an agreement made with the bank.
- iv) The cheque is presented within 3 months from the date on which it is drawn or within the period of its validity.
- v) within 30 days a legal demand notice is issued by the payee or the holder in due course to the drawer of the cheque on receipt of information by him from the bank regarding the dishonour of the cheque.
- vi) The drawer of the said cheque fails to make payment of the said amount of the money as demanded in the legal demand notice to the payee or the holder in due course within 15 days of the receipt of said notice.

vii) The debt or other liability against which the cheque was issued is legally enforceable.

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20. Before discussing the facts, undersigned deems it necessary to discuss certain legal propositions i.e. it is settled proposition of criminal law that prosecution is supposed to prove its case on judicial file beyond reasonable doubt by leading reliable, cogent and convincing evidence. Further, it is a settled proposition of criminal law that in order to prove its case on judicial file, prosecution is supposed to stand on its own legs and it cannot derive any benefit whatsoever from the weaknesses, if any, in the defence of the accused. Further, it is a settled proposition of criminal law that burden of proof of the version of the prosecution in a criminal trial throughout the case is on the prosecution and it never shifts to the accused. Also it is a settled proposition of criminal law that the accused is entitled to the benefit of every reasonable doubt in the prosecution story and such doubt entitles the accused to acquittal.

21. Now, coming to the facts of the present complaint case keeping in view the essential ingredients of section 138 of NI Act. In this case, it is not disputed and duly admitted by the accused that the cheque in question bears his signatures, however he denies the other particulars fulfilled by him but admits that the same was in possession of the Anuradha/Radha Dass who used to look over the work of his music academy in his absence. It shows that Anuradha/Radha Dass was having implied authority of the drawer of the cheque and handing over of the signed cheque of the accused by the Anuradha/Radha Dass also falls under the drawing of the cheque by the accused. Therefore, it can be said that the cheque was drawn by him in favour of the complainant. Therefore, the essential ingredient (i) as discussed in the preceding paragraph stands fulfilled.

22. Accused has further admitted the fact of dishonour of the cheque in question, hence, another essential ingredients (iii) and (iv) also stand proved by the complainant. Accused has denied the fact of receiving the SNEHIL SHARMA SHARMA Date:

2025.01.27 16:37:45 +0530 legal demand notice sent to him by complainant in framing the notice and during recording of SA as well as in DE. As the accused has appeared before the court and matter came in his knowledge and documents were supplied to him after summoning, still accused chose not to reply back the legal notice or to pay the due amount. Moreover, the accused has not challenged the postal receipts and agrees that he was residing at the given address till November 2019 and as per the postal receipts legal notice was delivered to the accused on 08.06.2019. Accused has not called any postal witness to challenge the postal receipts and postal receipts shows confirmed delivery to the addressee. So it can be rightly said that he has received the legal notice. Hence, essential ingredients (v) and (vi) also stand proved.

23. In the landmark decision of Hon'ble Supreme Court of India in matter of "C. C. Alavi Haji Vs. Palapetty Mohd. & Anr." reported in (2007) 6 Supreme Court Cases 555 held that as under:-

"Any drawer who claims that he did not received the notice sent by post, can, within 15 days of receipt of summons from the court in respect of complaint Under Section 138 of the Act, make the payment of the cheque amount and submit to the court that he had made the payment within 15 days of the receipt of summons (by receiving a copy of complaint with the summons) and, therefore, the complainant is liable to be rejected. A person who does not pay within 15 days of receipt of summons from the court along-with the copy of complaint Under Section 138 of the Act, can not obviously contend that there was no proper service of notice as required Under Section 138, by ignoring statutory presumption to the contrary Under Section 27 of G. C. Act and 114 of the Evidence Act."

24. Now coming to the last and the remaining core ingredients (ii) and

(vii) of Section 138 of NI Act as discussed above and the real issue of controversy herein i.e. whether the cheque in question was issued in discharge of any debt or liability, whole or in part and whether the same is a legally enforceable debt.

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25. With respect to the point of blank cheque raised by the accused, it is pertinent to mention that Section 20 of the NI Act talks about inchoate instruments. As per this provision if a person gives a duly signed cheque which is either blank or partly filled then he is deemed to have given implied authority to the holder to fill up the particular in it and complete the cheque, thus making the draw liable for the payment mentioned in it. It is immaterial that the cheque may have been filled in by any person other than the drawer, when the cheque is duly signed by the drawer. If the cheque is otherwise valid, the penal provision of section 138 would be attracted. At this stage, reference may be sought from the decision of Hon'ble Supreme Court in the case of Bir Singh vs. Mukesh Kumar (2019) 4 SCC 197 wherein the Apex Court while upholding the validity of blank signed cheque in a proceeding u/s 138 of the Act has interalia held the following:

"If a signed blank cheque is voluntarily presented to a payee, towards some payment, the payee may fill up the amount and other particulars. This in itself would not invalidate the cheque. The onus would still be on the accused to prove that the cheque was not in discharge of a debt or liability by adducing evidence."

26. In this case, the statutory presumptions under section 118(a) and 139 would be raised in favour of the complainant. Since, the accused has admitted the execution of impugned cheques and signatures on cheque in question, the aforementioned statutory presumptions would be raised in favour of the complainant regarding the fact that the impugned cheques have been drawn for consideration and issued by the accused in discharge of legally enforceable debt.

27. It has been held by a three-judge bench of the Hon'ble Apex Court in the case of Rangappa vs. Sri Mohan (2010) 11 SCC 441 that the presumption contemplated under Section 139 of NI Act includes the SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:38:01 +0530 presumption of existence of a legally enforceable debt. Once the presumption is raised, it is for the accused to rebut the same by establishing a probable defence. The principles pertaining to the presumptions and the onus of proof were recently summarized by the Hon'ble Apex Court in Basalingappa vs. Mudibasappa (2019) 5 SCC 418 as under:

"25. We having noticed the ratio laid down by this Court in the above cases on Section 118(a) and 139, we now summarize the principles enumerated by this Court in the following manner:

25.1. Once the execution of cheque is admitted Section 139 of the Act mandates a presumption that the cheque was for the discharge of any debt or other liability.

25.2. The presumption under Section 139 is a rebuttable presumption and the onus is on the accused to raise probable defence. The standard of proof for rebutting the presumption is that of preponderance of probabilities.

25.3. To rebut the presumption, it is open for the accused to rely on evidence led by him or the accused can also rely on the materials submitted by the complainant in order to raise a probable defence. Inference of preponderance of probabilities can be drawn not only from the materials brought on record by the parties but also by reference to the circumstances upon which they rely.

25.4. That it is not necessary for the accused to come in the witness box in support of his defence. Section 139 imposed an evidentiary burden and not a persuasive burden.

25.5. It is not necessary for the accused to come in the witness box to support his defence."

It is explicit in the NI Act that the said presumption shall remain until contrary is proved.

28. With respect to ingredients (i), in this case, it is disputed and denied by the accused that other details are not written by him and he does not owe liability towards the complainant and has not given the cheque in question to the complainant. Here, the accused has challenged the first ingredient that cheque was never intended to be used by the complainant as it is used in this case. Therefore, implied authority to holder fill up the particular is challenged.

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29. In the present case, perusal of the record shows that complaint as well as the evidence affidavit is not clear with respect to the fact that to whom the complainant has handed over the amount i.e. whether he has handed over the amount to Anuradha/Radha Dass or to the accused. There are several contradictions in the statement of the complainant itself. In the cross examination dt.

21.10.2023, CW1 has stated that it is correct that he has advanced the loan to the accused upon the instance of Anuradha/Radha Dass. In the same cross examination he stated that the loan amount was handed over to the Radha Dass in presence of the accused. This court fails to understand that if the complainant was having the dealing with the accused and acted upon the instance of Anuradha/Radha Dass then why he had not handed over the loan amount to the accused itself. Moreover, the ITRs/balance sheet i.e. Ex.CW1/D2 also shows that name of Anuradha/Radha Dass is mentioned as a person who had taken loan from the complainant and not the name of the accused.

30. It is also found that as per the complainant, he had given Rs. 8-10 lacs to the Anuradha/Radha Dass which also raises doubt in favour of the accused because how and when the said Rs. 8-10 lacs were returned by Anuradha/Radha Dass is not explained by the complainant and defence of the accused lies upon the fact that Anuradha/Radha Dass has misused her authority and misused his cheques. It is pertinent to mention here that as per CW1, he knew that Anuradha/Radha Dass was receptionist to the accused and accused has stated that maximum salary of his staff was Rs. 6,000/- only. This court fails to understand that why the complainant had given Rs. 8-10 lacs to the receptionist Anuradha/Radha Dass or why he had given Rs. 11 lacs to the accused on the instance of receptionist Anuradha/Radha Dass without satisfying her loan repaying capacity.

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31. It is also found that complainant has stated that he has studied till 2 nd year of BA and he is a dealer and engaged in constructions project as well. He has also filled the ITRs. This court fails to understand that why the complainant has not transferred the amount through cheque/bank to the accused's account and if he had given the amount to the accused in cash then why he has not executed any document in this regard. Being property dealer and engaged in construction projects, this much of basic understanding was expected from him. CW1 has also stated that he had never communicated with the accused telephonically regarding the repayment of the loan. Same is contradictory to his statement given in complaint as well as evidence affidavit that he immediately contact the accused after bouncing of the cheque who gave him evasive replies. This also raise suspicion on the story of the complainant as why a person will not atleast make a call to the debtor for returning of the money.

32. It is also found that accused has time and again stated that he has never met the complainant and complainant had not shown any evidence to suggest that he had ever met the accused or he contacted the accused at his phone call or at his address. It is pertinent to mention here that during the DE, complainant has stated that he has never visited the residence of the accused. This court fails to understand why the person will not take all the possible steps to reach to the accused for recovery of his money. It is also found that CW1 has stated that Anuradha/Radha Dass had given her cheque at the time of advancing second installment of Rs. 5 lacs to the accused. This court also fails to understands that why the complainant had not taken the acknowledgment at the time of advancing second loan also.

33. It is also found that as per the complainant he had given the amount of Rs.4,90,000/- in first week of July 2016 and thereafter Rs.1,10,000/- in last week of November 2017 and then Rs. 5 lacs in

last week of March 2018. This court also fails to understand that why the complainant kept on SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:38:21 +0530 giving money after money to the accused till year 2018 even when he was not returning the money of the year 2016. It is also found that repayment of Rs. 1,00,000/- by the accused came first time in the cross examination of CW1 and that can be treated as improvement in the version of the complainant to match up cheque amount. It is also found that date of legal notice are not mentioned by the complainant in complaint as well as in evidence affidavit and same is left blank.

34. This court also fails to understand that why the complainant gave friendly loan of Rs. 11 lacs to the accused for around 3 years and that too when he himself was a builder and could have earned a good return, if he had invested that amount in his property business. It is also found that accused has justified his defence by proving that Anuradha/Radha Dass was his receptionist and he suspected that she had misused his cheque. Defence of the accused is corroborated by the complainant itself by stating in the cross examination dt. 21.10.2023 that the cheque in question was handed over to him by Anuradha/Radha Dass in presence of the accused, however, he could not prove that accused was present there. Even, the complainant could not prove the source of the Rs. 11 lac at the given time. As per the complainant's version, he withdrew Rs. 1-1.5 lacs from the bank. However, no proof of remaining Rs. 10 lacs is addressed by the complainant. Even, the complainant had not provided any other evidence/document to suggest that accused has also undertaken to pay Rs. 2 lac as a compensation to the complainant apart from the loan.

35. It is also found that in the paragraph number 6 of evidence affidavit and paragraph number 5 of the complaint, complainant has deposed that accused no. 1 i.e. Ranjeet Kumar Biswas has accepted the entire liability of loan and given undertaking to the complainant to pay the entire loan amount. This also suggests that complainant had not granted entire loan to SNEHIL by SNEHIL SHARMA SHARMA Date: 2025.01.27 16:38:27 +0530 the accused and no such undertaking is provided by the complainant to suggest that accused has accepted the cheque liability.

36. It is also found that the accused has executed the bail bonds with the name of 'Ranjib Kumar Biswas' and he has also filed document in this regard but the complainant had stated that he knew the accused for the last 10 years. This court fails to understand that why the complainant did not know even the basic information of the accused i.e. his name. It is also found that in the complaint as well as in evidence affidavit complainant stated that accused has sought friendly loan for doing a work on big stage programme of singing and dancing competition, however during the cross examination he stated that accused has asked for loan for his business expansion. This is also a relevant contradiction. Further, this court fails to understand that why the complainant gave the money to the accused without satisfying himself with the big stage programme or business expansion if explained/informed him. This court also fails to understand why the complainant did not involve Anuradha/Radha Dass who is known to him for the last 25 years for intervening in the matter and for asking accused to return the money because as per complainant he had given money to the accused on the instance of Anuradha/Radha Dass.

37. On the aspects of preponderance of probabilities, the accused has to bring on record such facts and such circumstances which may lead the court to conclude either that the consideration did not

exist or that its nonexistence was so probable that a prudent man would, under the circumstances of the case, act upon the plea that the consideration did not exist. As per the facts and circumstances of this case accused has led cogent and believable evidence to support his defence and rebutted the presumption.

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38. The Hon'ble Supreme Court in the case of M.S. Narayana Menon @ Mani v. State of Kerala (2006) 6 SCC 39 has observed as under, "32. A Division Bench of this Court in Bharat Barrel & Drum Manufacturing Company v. Amin Chand Payrelal [(1999) 3 SCC 35] albeit in a civil case laid down the law in the following terms:

"Upon consideration of various judgments as noted hereinabove, the position of law which emerges is that once execution of the promissory note is admitted, the presumption under Section 118(a) would arise that it is supported by a consideration. Such a presumption is rebuttable. The defendant can prove the non- existence of a consideration by raising a probable defence. If the defendant is proved to have discharged the initial onus of proof showing that the existence of consideration was improbable or doubtful or the same was illegal, the onus would shift to the plaintiff who will be obliged to prove it as a matter of fact and upon its failure to prove would disentitle him to the grant of relief on the basis of the negotiable instrument. The burden upon the defendant of proving the non- existence of the consideration can be either direct or by bringing on record the preponderance of probabilities by reference to the circumstances upon which he relies."

39. The primary burden upon the accused was to punch holes in the version of the complainant in order to rebut the presumptions and the standard of proof required from his was preponderance of probabilities; and the accused has been able to do the same by bringing out the inconsistencies and contradictions in the version put forward by the complainant.

40. Hence, doubt is raised upon the story deposed by the complainant. The contradictions and omissions in the evidence of complainant could be removed by bringing witness or any audio/video recording or any documentary evidence or any chating or by showing the transfer from the bank or by disclosing the same in evidence etc. As per the above discussion, it can not be said that the cheque was drawn by accused in favour of the complainant as shown by the complainant. Therefore, the essential ingredient (i) as discussed in the preceding paragraph does not stand fulfilled.

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41. As observed by the Supreme Court in State of Rajasthan v. Kalki (1981) 2 SCC

752) "normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness be.

Material discrepancies are those which are not normal and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.

Here the above discussed discrepancies are material one and fatal to the case.

42. Keeping in view the facts and circumstances of the present case and the settled position of law in this regard, the ingredients mentioned at (i),

(ii) & (vii) of Para No. 19 of this judgment are not fulfilled. These circumstances attract benefit of doubt in favour of the accused.

43. In my view, the complainant has failed to prove that the accused had issued the cheque in question in his favour for discharge of the legally enforceable liability and has failed to prove his case against the accused for the offence under Sec. 138 Negotiable Instruments Act. Resultantly, the accused Ranjeet Kumar Biswas @ Ranjib thus, stands acquitted for the said offence.

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Announced in Open Court
today on 27.01.2025

(SNEHIL SHARMA)
JMFC(NI Act-08)
SOUTH WEST DISTRICT
DWARKA COURTS, DELHI